

Sukhpal v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 16 January 2018 · Writ - C No. 2161 of 2018 · **Writ dismissed as withdrawn with liberty under Clause 6.14.**

HEADNOTE

On an uncontested objection that Clause 6.14 of the Electricity Supply Code, 2005 afforded an efficacious remedy to seek instalment of outstanding electricity dues, the Allahabad High Court dismissed the consumer's writ as withdrawn with liberty to apply to the appropriate authority under that clause.

FACTUAL SUMMARY

Sukhpal filed a writ petition in the Allahabad High Court against the State of Uttar Pradesh and three others, including the distribution licensee, concerning outstanding electricity dues. Counsel for respondent no. 4 objected that Clause 6.14 of the Electricity Supply Code, 2005 gave the petitioner an efficacious remedy to seek payment of those dues in instalments from the appropriate authority. Finding it difficult to contest the objection, the petitioner sought leave to withdraw the writ with liberty to apply under Clause 6.14.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment of outstanding dues

HOLDING

Where outstanding electricity dues are in issue, Clause 6.14 of the Electricity Supply Code, 2005 is an efficacious remedy to apply to the appropriate authority for payment in instalments. The writ was dismissed as withdrawn with liberty to invoke that clause. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO INSTALMENT OF THE OUTSTANDING ELECTRICITY DUES, AND THE QUANTUM OF THOSE DUES

The Court did not examine the bill or the instalment claim on merits; the petitioner was left to apply under Clause 6.14. ¶ 1